

**BEFORE THE RULES AND BYLAWS COMMITTEE
AND THE CREDENTIALS COMMITTEE
OF THE DEMOCRATIC NATIONAL COMMITTEE**

In re Implementation of the 2020 West Virginia Memorandum of Understanding, Control of the West Virginia Young Democrats, and Credentials Arising from the June 6, 2026 Reorganization.

Seth Sturm, Challenger, joined by the undersigned
West Virginia Co-Signers.

**CONSOLIDATED
CHALLENGE**

Submitted under RBC Regulation 3.1 and DNC Bylaws Article Two, Section 10(b).

PRELIMINARY STATEMENT

Challengers seek review of credentials arising from the June 6, 2026 West Virginia reorganization, where members voting from a disputed pool elected the state chair and produced the automatic DNC credential. The DNC cannot claim neutral deference to this voting body, because national DNC officers actively helped produce the credential defect now before it.

The 2020 Memorandum of Understanding reserved the MOU-created constituency seats to caucus and constituency selection. RBC co-chairs signed that instrument and placed implementation under RBC supervision. Harold Ickes, a sitting RBC member, authored or created governance and grievance files that WVDP later treated as local work and told the controlling majority to outvote named minority caucus members. DNC officer Clara Pratte opened a mediation path involving Vice Chair Ken Martin, withdrew that path, and redirected challengers into a state appeal path built around a two-thirds barrier the rules did not contain. Fifteen West Virginia Democrats then returned to the RBC and invoked the MOU. The RBC denied jurisdiction and, in the same letter, entered a merits blame finding against the challenger for the Indigenous Caucus dissolution. The DNC's refusal let WVDP treat disputed source authority as settled and use those seats in the June 6 WVSDEC voting pool. [Ex. 1, Ex. 2, Ex. 3, Ex. 3-A, Ex. 4, Ex. 5, Ex. 6, Ex. 7, Ex. 8, Ex. 9]

Alabama supplies the power question and the remedy. The DNC entered a factional state-party dispute there, looked behind announced results, used a hearing officer, ordered new votes, imposed safeguards, and authorized national enforcement. In West Virginia, DNC actors sit inside the challenged chain. The committees should not receive credentials from that chain through ordinary deference. [Ex. 10, Ex. 11, Ex. 12]

WVDP officers did not merely litigate a youth-organization dispute. While affected members sought DNC intervention, WVDP officers used internal party adjudication to demand and take control over WVYD funds, records, accounts, and organizational identity; escalated the dispute through law enforcement; and carried the party-controlled WVYD identity forward through PAC amendments and party affiliation. The party-controlled youth-constituency identity supplied a voting seat in the June 6 WVSDEC pool that elected the state chair and now controls the path for any future credential-related action. [Ex. 13, Ex. 14, Ex. 15, Ex. 16, Ex. 16-A, Ex. 17, Ex. 18]

The record presents five questions the DNC cannot avoid.

- QUESTION I. May the DNC recognize the automatic state-chair credential, or later accept any future credential, from a WVSDEC structure assembled through MOU-created constituency seats filled by committee action rather than constituency selection?
- QUESTION II. May the DNC claim neutral deference to a state process that its own officers signed, shaped, routed, and refused to review?
- QUESTION III. Does the RBC preserve ordinary deference when it denies jurisdiction and, in the same letter, enters a merits finding that blames the challenger and protects the structure under review?
- QUESTION IV. May WVDP officers use internal adjudication to take control over a youth-constituency organization, then use that controlled identity to supply a voting seat in the pool that elects an automatic DNC member and controls the path for future credentials?
- QUESTION V. When the DNC has participated in the instrument, implementation, exhaustion path, and dismissal, must the challenge be referred to an independent hearing officer before the DNC recognizes the automatic chair credential or accepts future credentials produced by that chain?

The record requires independent relief. The committees should refer this matter to an independent hearing officer, preserve and produce the native files that carry authorship and editing facts, decide the source authority of the caucus-nominated at-large seats, the AAC co-chair seats, and the youth-constituency ex officio seat, and condition recognition of the automatic state-chair credential and any future West Virginia DNC credential until the hearing officer completes that record.

1. JURISDICTION, STANDING, AND TIMELINESS

1.1 RBC jurisdiction

1. Challengers bring this filing under RBC Regulations 3.1(A)(ii) and 3.1(A)(iii): failure to implement an approved Affirmative Action Plan and Outreach and Inclusion Program, and failure to implement specific requirements of the State Plan. [Ex. 1, Ex. 18, Ex. 19]
2. Regulation 1.1(H) defines “Plan” to include the Affirmative Action Plan, the Outreach and Inclusion Program, and the Delegate Selection Plan.
3. The challenged implementation acts occurred on June 4 and June 6, 2026. Earlier dated acts establish source authority, DNC participation, notice, refusal of review, and futility. [Ex. 1, Ex. 18, Ex. 19]

1.2 RBC standing

4. Seth Sturm brings this challenge as the challenger of record, joined by fifteen or more West Virginia Democrats as co-signers. Each co-signer is a West Virginia resident who is registered, enrolled, or otherwise qualifying as a Democrat, subscribes to the Charter and Bylaws, and has been personally injured or is a member of a class injured by the conduct pleaded here. [Schedule of Co-Signers]
5. Each co-signer executed the Co-Signer Affidavit, which the challenger holds and produces on request, and the challenger’s notarized Verification and Custodian Attestation is filed with this challenge.

1.3 RBC timeliness and state remedies

6. The violation ripened on June 4 and June 6, 2026, and this filing falls within the 15-day implementation-challenge window measured from those acts. [Ex. 18, Ex. 19]
7. The challenge is also timely under the wider window the rule provides. A challenge to an Affirmative Action Plan or Outreach and Inclusion Program may be filed at any time up to thirty days before the state’s delegate selection process begins, and the 2028 delegate selection process has not begun.
8. State remedies were invoked and failed at the triggering event: the June 6 objection was ruled already decided, the appeal died for lack of a second, and the objection was preserved in writing. Further state process is futile for the reasons in Section 8. [Ex. 18, Ex. 20]

1.4 Credentials jurisdiction

9. The filing reaches the automatic DNC credential attached to the state chair elected on June 6, 2026, and preserves objection to any additional West Virginia DNC credential, certification, or credential-related action produced by or dependent on the same reorganization. [Ex. 18]
10. On September 22, 2021, RBC member Ickes stated that because state officers become DNC members by virtue of office, their elections can be challenged before the DNC Credentials Committee. The challengers cite that statement as the DNC's own statement of the credential basis. [Ex. 3]

1.5 Credentials timing and procedure

11. Challengers file from the June 6, 2026 selection, from the automatic state-chair credential arising from it, and from any future certification or credential-related action dependent on the same WVSDEC structure. [Ex. 18, Ex. 20]
12. The challengers request written confirmation of the certification date, the filing deadline, the recipient, and any contrary procedure, and will conform without loss of the filing date if the DNC identifies a different current rule.

1.6 Severability and referral

13. If either committee determines that part of this filing belongs before another DNC body, the challengers request referral rather than dismissal. [Ex. 8]
14. Separate docketing does not divide the facts. The RBC and the Credentials Committee draw on one record. [Ex. 1, Ex. 18]

2. ACTION CHAIN, 2020 TO 2026

15. The Rules and Bylaws Committee resolved the 2020 West Virginia challenges through a Memorandum of Understanding signed by the Rules and Bylaws Committee co-chairs. The Memorandum designated Selina Vickers as the Challengers' representative and placed the constituency-seat process under RBC supervision and final approval. [Ex. 1]
16. A November 22, 2020 grievance was filed in Vickers's name. Native-file metadata identifies Harold Ickes as author. [Ex. 2]
17. On June 2, 2021, the Affirmative Action Committee held scripted formation elections. Vickers was elected to a combined Secretary and Parliamentarian position the bylaws did not contain. [Ex. 21]

18. By July 12, 2021, the AAC welcomed the newly elected Latin American, Asian American/Pacific Islander, and Native American/Indigenous People/American Indian co-chairs into the AAC. The Memorandum of Understanding required that AAC members be selected by their particular caucus. [Ex. 1, Ex. 22]
19. In August and September 2021, governance and implementation files later presented as local work identified Harold Ickes as author or creator, including procedural rules, agenda documents, the Code of Conduct, grievance material, and meeting-issue documents. [Ex. 2]
20. On August 20, 2021, the draft Affirmative Action Plan was circulated with the note that the drafter had taken the Alabama plan and replaced Alabama with West Virginia. [Ex. 2-A]
21. On September 22, 2021, Ickes addressed the Planning Subcommittee. He told the majority to keep the plan light on detail, warned that they could be hoisted on their own petard, and stated that the opposition could use the rules they wrote to “jam” them. He named Seth Sturm and Mari Sturm as difficult caucus members and stated that he had told Vickers that the majority had “at bottom” to outvote them. [Ex. 3]
22. A contemporaneous email corroborated that Ickes had advised Selina to outvote Seth, Mari, and others. [Ex. 3-A]
23. On September 26, 2021, Vickers described Ickes as an invited guest who shared the Alabama experience, and stated that in the end the votes were what mattered. [Ex. 23]
24. On September 27, 2021, the Affirmative Action Committee censured Seth Sturm and Mari Sturm. [Ex. 24]
25. On November 29, 2021, the Board of Appeals found that the Affirmative Action Committee had not followed the approved procedure to notice nominations and elections and ruled that the defect had to be corrected. [Ex. 25]
26. In September 2022, the Indigenous Caucus executive committee dissolved the caucus by emergency meeting. The dissolution resolution recited that the plan was drafted without input by Black or Indigenous members of the Affirmative Action Committee and that leadership had sought advice on how to silence minorities upset with the process. [Ex. 9]

27. In May 2023, the Affirmative Action Committee held its last meeting and did not convene again until the 2026 reorganization cycle. [Ex. 19, Ex. 26]
28. In August 2023, DNC officer Clara Pratte opened a mediation path involving Vice Chair Ken Martin. [Ex. 4]
29. On September 30, 2023, at the only post-pandemic State Executive Committee meeting held without a virtual option, WVDP permitted multiple proxies. In the later Hively proxy grievance, the defense identified four individuals holding eleven disputed proxies, including Troy Miller holding four. [Ex. 27, Ex. 28]
30. On October 30, 2023, Pratte withdrew mediation and stated that the next step was a State Executive Committee appeal. [Ex. 5]
31. On October 31, 2023, Pratte introduced a two-thirds State Executive Committee vote, drawn from an override mechanism, as the state-process path before a Rules and Bylaws Committee challenge. The WVDP rules did not contain that second-appeal barrier. [Ex. 6]
32. On March 28, 2024, fifteen West Virginia Democrats filed a Rules and Bylaws Committee challenge invoking the Memorandum of Understanding. [Ex. 7]
33. On June 28, 2024, the Rules and Bylaws Committee co-chairs dismissed the challenge for lack of jurisdiction. The challenge expressly invoked the Memorandum of Understanding, but the dismissal stated that the challenge did not allege an MOU violation. The dismissal also entered a merits finding by faulting the member-challenger for instigating the voluntary disbandment. James Roosevelt, who signed the 2020 Memorandum, co-signed the dismissal of the challenge to its implementation. [Ex. 1, Ex. 8, Ex. 9]
34. In 2025 and 2026, the party-controlled Young Democrats identity carried forward through registration amendments under party officers and party identity. The Secretary of State later confirmed that later officer or address changes did not change the January 2025 triggering filing, and that disputes over organizational structure, seizure, or conversion fall outside the Secretary of State's jurisdiction. [Ex. 16, Ex. 16-A, Ex. 17]
35. On June 4, 2026, the Affirmative Action Committee awarded the at-large seats by committee action and elected co-chairs. On June 6, 2026, the reorganized committee seated those members, ruled the objection to its composition already decided, elected the state chair who holds an automatic DNC credential, and left in place

the WVSDEC structure that will produce or certify any future West Virginia DNC credential. [Ex. 18, Ex. 19, Ex. 20]

3. DNC FACTIONAL INTERFERENCE AND SOURCE AUTHORITY

36. The 2020 settlement fixed the source authority for the MOU-created constituency seats. [Ex. 1]
37. The challenges it resolved were filed with the RBC and Credentials Committee and concerned delegate selection, party officers, and party positions. [Ex. 1]
38. The settlement required RBC supervision and final approval of WVDP bylaw revisions. [Ex. 1]
39. The settlement reserved selection authority to constituencies. [Ex. 1]
40. AAC members were to be “selected by their particular caucus.” [Ex. 1]
41. At-large nominations were to be “conducted by caucuses of the diversity groups.” [Ex. 1]
42. The AAC had administrative duties: monitor representation, identify defects, and recommend corrective action. [Ex. 1]
43. The settlement gave the AAC administrative and corrective duties, not authority to replace caucus selection with committee allocation. [Ex. 1]
44. Those provisions made constituency choice the source of the seats. Committee action could administer that source authority; it could not become the source authority. [Ex. 1]
45. Native-file metadata identifies Harold Ickes as author or creator of grievance, governance, agenda, procedural, and code files that WVDP later presented as local work. [Ex. 2]
46. The implementation team imported Alabama plan text into West Virginia by instruction to “replace Alabama with West Virginia.” [Ex. 2-A]
47. Ickes addressed the September 22 planning meeting and told the controlling majority that, “at bottom,” it had to outvote the named challengers. [Ex. 3, Ex. 3-A]
48. Ickes’s outvote instruction moved a constituency-selection promise back under the controlling majority. The hearing officer must decide whether that DNC-side intervention breached the MOU’s source-authority structure. [Ex. 1, Ex. 3, Ex. 3-A]

- 49. Ickes stated the DNC credential basis later denied in practice: when state officers become DNC members by virtue of office, their elections can be challenged before the DNC Credentials Committee, and deficient elections can require reruns and bylaw correction. [Ex. 3]
- 50. DNC officer Clara Pratte opened a mediation path involving Vice Chair Ken Martin, then withdrew mediation and routed challengers into a state appeal process built around a two-thirds barrier the WVDP rules did not contain. [Ex. 4, Ex. 5, Ex. 6]
- 51. Roosevelt signed the 2020 settlement and co-signed the 2024 dismissal of the fifteen-Democrat challenge to its implementation. [Ex. 1, Ex. 8]
- 52. The RBC dismissal protected the status quo during the period in which WVDP officers carried party control of WVYD into 2025 and 2026. [Ex. 8, Ex. 16, Ex. 16-A, Ex. 17]
- 53. The DNC cannot claim neutral deference to the chain now producing credentials. RBC co-chairs signed the source authority, Harold Ickes shaped implementation, Clara Pratte routed exhaustion, and James Roosevelt refused review of the instrument he signed. Ordinary deference cannot adjudicate a challenge to that chain. [Ex. 1, Ex. 2, Ex. 3, Ex. 4, Ex. 5, Ex. 6, Ex. 8]

4. CAPTURE OF CONSTITUENCY SELECTION

- 54. The settlement provisions governed the MOU-created constituency seats the AAC filled on June 4, 2026. [Ex. 1, Ex. 19]
- 55. The AAC sat dormant from May 2023 until June 4, 2026. [Ex. 19, Ex. 26]
- 56. On June 4, 2026, the AAC awarded six at-large seats by committee action rather than caucus nomination. [Ex. 19]
- 57. At the same meeting, the AAC elected two co-chairs without the extended election notice the bylaws require. [Ex. 19]
- 58. The AAC awarded the at-large seats to members already seated; the June 4 action added no constituency-selected member. [Ex. 19]
- 59. The AAC used committee action to fill seats the settlement reserved to caucus nomination. [Ex. 1, Ex. 19]

5. WVYD: STATE PROCESS USED TO CAPTURE A YOUTH-CONSTITUENCY SEAT

- 60.** WVDP officers used internal party adjudication to take control of WVYD's funds, records, accounts, and organizational identity, then used the party-controlled WVYD identity to supply a June 6 voting seat. The DNC had formal notice while the taking was active. The WVYD record therefore proves futility in concrete form: the state process the DNC pointed challengers toward was being used to capture the youth constituency itself. [Ex. 13, Ex. 14, Ex. 15, Ex. 16, Ex. 16-A, Ex. 17]
- 61.** On September 29, 2023, the WVDP received a YDA charter determination concerning WVYD. YDA stated that West Virginia was not currently chartered and that the last charter had expired in July 2023. [Ex. 29]
- 62.** On January 5 and 6, 2024, WVDP officers assembled and transmitted the record used to initiate the WVYD grievance. [Ex. 30]
- 63.** On January 8, 2024, the grievance was filed, with exhibits keyed to that file. [Ex. 31]
- 64.** On February 22, 2024, the WVDP Board of Appeals found that Hively had never been elected president and that WVYD was not chartered by YDA. [Ex. 13]
- 65.** The same order directed turnover of WVYD's funds, records, accounts, and organizational control. [Ex. 13]
- 66.** The order bound the treasurer of record without making the treasurer a party or hearing the treasurer. [Ex. 13]
- 67.** The order commanded turnover from "that last acting President," an office the same order found had never existed. [Ex. 13]
- 68.** The order treated WVYD leadership as nonexistent for recognition, then used that same supposed authority path to demand turnover of WVYD property and control. [Ex. 13]
- 69.** On March 1 and 8, 2024, the WVDP executive director used the February 22 order to refuse the tendered resignation, issue a final request, and announce an audit "as ordered." [Ex. 14]
- 70.** The Kanawha County Sheriff's Office record supplies the law-enforcement referral, prosecutor meeting, bank and property materials, and the later declination. [Ex. 15]
- 71.** On January 23, 2025, WVDP officers filed a WVYD PAC registration amendment placing the committee under party officers and party contact information. [Ex. 16]

- 72. The Secretary of State later treated that filing as the triggering filing and stated that later officer or address changes did not alter the date of the triggering act. [Ex. 16-A]
- 73. Across December 18, 2025 and January 21, 2026, a later WVYD PAC amendment carried “West Virginia Democratic Party” on the affiliate line. [Ex. 17]
- 74. The party-controlled WVYD identity supplied the youth-constituency ex officio seat in the June 6, 2026 WVSDEC voting pool. [Ex. 16, Ex. 16-A, Ex. 17, Ex. 18]

6. DNC NOTICE AND JUNE 28 REFUSAL

- 75. On March 28, 2024, fifteen West Virginia Democrats filed a challenge with the RBC invoking the 2020 settlement. [Ex. 7]
- 76. The RBC received formal notice of the settlement dispute during the same period WVDP officers used the February 22 order to demand WVYD’s accounts, records, bank materials, and identity. The overlap placed the DNC on notice that the state process it had required was actively capturing a constituency organization. [Ex. 7, Ex. 13, Ex. 14, Ex. 15]
- 77. Pushkin contacted Prosecutor Petry about a possible criminal matter involving WVYD on June 4, 2024, during the pendency of the March 28 challenge before the RBC. [Ex. 15]
- 78. A meeting followed with prosecutors, Detective Pile, Pushkin, and Frankenberry. [Ex. 15]
- 79. KCSO opened Case No. 2024-00017430. [Ex. 15]
- 80. The Kanawha County Prosecuting Attorney later declined the matter on February 25, 2026. [Ex. 15]
- 81. On June 28, 2024, RBC Co-Chairs Roosevelt and Moore dismissed the March 28 challenge. [Ex. 8]
- 82. Roosevelt had signed the 2020 settlement. [Ex. 1, Ex. 8]
- 83. A signatory to the settlement participated in dismissing the challenge to that settlement’s implementation. [Ex. 1, Ex. 8]
- 84. The dismissal quoted Regulation 3.1, including the category for failure to implement an approved affirmative-action plan, and then declined review. [Ex. 8]

85. The dismissal described the settlement as one “between the RBC’s Co-Chairs, WVDP, and Selina Vickers,” narrowing it below its recitals. [Ex. 1, Ex. 8]
86. The dismissal denied jurisdiction and, in the same letter, found that the member-challenger “instigated the voluntary disbandment.” The RBC entered a merits blame finding inside a jurisdictional dismissal. [Ex. 8]
87. After the dismissal, WVDP officers carried party control of WVYD into 2025 and 2026 through registration amendments using party officers, party contact information, and party identity. [Ex. 8, Ex. 16, Ex. 16-A, Ex. 17]
88. The RBC co-chairs refused review while the WVYD taking was active. WVDP officers then carried the same party-controlled WVYD identity into the WVSDEC voting pool that elected the automatic state-chair credential and will produce or certify any future West Virginia DNC credential. [Ex. 8, Ex. 13, Ex. 16, Ex. 16-A, Ex. 17, Ex. 18]

7. DNC CLAIMED POWER IN ALABAMA

89. Alabama establishes the DNC’s claimed power in factional state-party disputes. The RBC took up the dispute, looked behind announced results, reviewed the voting body, used a hearing officer, and ordered supervised correction. [Ex. 10]
90. The Alabama power reached the voting body itself. The RBC found that notice defects, fee and due-process defects, and the denial of certain diversity constituencies’ equal opportunity to elect at-large members required a new vote and procedural safeguards. [Ex. 10]
91. The RBC ordered a new vote on Alabama’s bylaws, required an up-to-date membership list, required the affected diversity caucuses or committees to supply lists of their at-large members, barred a membership fee as a voting condition, and authorized its co-chairs to take enforcement action, including appointment of DNC representatives to assist compliance. [Ex. 10]
92. Public reporting on the hearing officer’s findings described the 2023 Alabama bylaws defect as fatal. Public reporting on later Alabama DNC-member credential disputes described improper voters, wrong voting units, quorum defects, selective enforcement, and attempted appointment of DNC members after the election process failed. The challengers cite that reporting as reporting; the underlying credential record is in the DNC’s custody. [Ex. 11, Ex. 12]

93. In West Virginia, the RBC dismissed a fifteen-Democrat MOU challenge during the period in which WVDP officers were using disputed party authority to control WVYD's accounts, PAC identity, and voting power. Alabama supplies the available remedy; West Virginia supplies the conflict requiring that remedy to run through an independent hearing officer. [Ex. 8, Ex. 10, Ex. 12]

8. JUNE 6 TRIGGER, AUTOMATIC CHAIR CREDENTIAL, AND FUTURE CREDENTIAL RISK

94. On June 6, 2026, the WVSDEC convened to reorganize and elect officers. [Ex. 18]
95. The state chair becomes a DNC member by virtue of office. The challenge therefore reaches at least the automatic chair credential and preserves objections to any later-filled DNC credential, certification, or credential-related action dependent on the June 6 WVSDEC structure. [Ex. 18]
96. The disputed voting pool included the six AAC at-large seats, the two co-chair seats, and the youth-constituency ex officio seat supplied through the party-controlled WVYD identity. [Ex. 18, Ex. 19]
97. Before the chair ballot, a member objected to the composition. [Ex. 18, Ex. 20]
98. The presiding officer ruled the objection already decided. [Ex. 18]
99. The member appealed the ruling, and the appeal died for lack of a second. [Ex. 18]
100. A point of order under Robert's Rules 45:4 challenged two voters' employment and financial relationship to a chair candidate; the assembled WVSDEC tabled the point by hand vote and never decided it, and both challenged votes were cast. [Ex. 18]
101. At Ballot 3, the presiding officer stated that two invalidated ballots would not have changed the outcome, then did not apply that outcome test to the ballots the point of order would have reached. [Ex. 18]
102. The presiding officer and assembled WVSDEC used the disputed voting pool to defeat the objection to that voting pool, then used the same voting pool to elect officers. [Ex. 18, Ex. 20]
103. Members voting from that disputed pool elected Pushkin chair, 43 to 32. The chair election produced the automatic state-chair credential and left in place the WVSDEC structure that will produce or certify any future West Virginia DNC credential. [Ex. 18]

- 104.** The member preserved the objection and noticed escalation in writing at 4:01 p.m. on June 6, 2026. [Ex. 20]
- 105.** The margins do not cure the source-authority defect; the disputed seats sat in the voting pool, and their participation reaches the announced chair margin. [Ex. 18]

9. FUTILITY AND INDEPENDENT REVIEW

- 106.** Futility is structural. Each available forum sat inside the challenged chain. The assembled WVSDEC included the disputed seats. Clara Pratte presented the state appeal route as the required next step. The RBC denied jurisdiction after challengers followed the DNC-routed path, narrowed the MOU, and assigned blame for the Indigenous Caucus dissolution. Independent review is the only remedy that matches that defect. [Ex. 1, Ex. 4, Ex. 5, Ex. 6, Ex. 7, Ex. 8, Ex. 9]
- 107.** The 2020 settlement created source authority for the MOU-created constituency seats and placed its implementation under RBC supervision and final approval. [Ex. 1]
- 108.** The WVDP Board of Appeals issued the February 22, 2024 order, and WVDP officers used that order to demand WVYD's funds, records, accounts, and organizational control. [Ex. 13, Ex. 14, Ex. 15]
- 109.** The RBC received the fifteen-Democrat challenge to the settlement's implementation while WVDP officers' WVYD demand remained active. James Roosevelt signed the 2020 settlement and then co-signed the June 28, 2024 dismissal of the challenge to that settlement's implementation. [Ex. 1, Ex. 7, Ex. 8]
- 110.** After the dismissal, WVDP officers carried party control of WVYD into 2025 and 2026. The AAC filled constituency seats by committee action on June 4, 2026. On June 6, 2026, the disputed WVSDEC voting pool ruled on its own composition, elected the automatic state-chair credential, and remained the source of any future West Virginia DNC credential action. [Ex. 16, Ex. 16-A, Ex. 17, Ex. 18, Ex. 19]
- 111.** The WVDP cannot validate the source authority of its own challenged composition, because the assembled WVSDEC and the officers who assembled it are part of the challenged chain. [Ex. 1, Ex. 18]
- 112.** The DNC's own conduct defeats ordinary deference: RBC co-chairs signed the instrument, Harold Ickes shaped implementation, Clara Pratte routed the state path, and James Roosevelt refused review before the disputed WVSDEC produced credentials. [Ex. 1, Ex. 2, Ex. 3, Ex. 4, Ex. 5, Ex. 6, Ex. 8, Ex. 18]

113. The committees should appoint one independent hearing officer under RBC hearing procedures, and use that record for credential consequences before the Credentials Committee. [Ex. 1, Ex. 8, Ex. 18]

10. VIOLATIONS AND REQUESTED RELIEF

RBC Regulation 3.4.D.ii requires a separate statement of violations and requested relief. The following statement preserves the factual record above without diluting it.

10.1 Violations Alleged

1. The Democratic National Committee, through the Rules and Bylaws Committee co-chairs, executed the 2020 Memorandum of Understanding tying the MOU-created constituency seats to caucus and constituency selection, then declined to enforce that instrument when state leadership filled those seats by committee vote.
2. Harold Ickes, a sitting Rules and Bylaws Committee member, authored or created grievance and governance files the state committee treated as local work, participated in implementation discussions, and told the controlling majority to outvote named minority caucus members.
3. DNC officer Clara Pratte opened a mediation path involving Vice Chair Ken Martin, withdrew that path, and redirected challengers into a state appeal path built around a two-thirds barrier the WVDP rules did not contain.
4. The Affirmative Action Committee filled the caucus-nominated at-large seats and elected its chairs on June 4, 2026 without the source authority and notice required by the approved framework.
5. The June 6, 2026 presiding officer and assembled WVSDEC seated those members, ruled the written objection to the voting pool's composition already decided, elected the state chair who holds an automatic DNC credential, and left the disputed WVSDEC structure in place to produce or certify future West Virginia DNC credentials.
6. West Virginia Democratic Party officers used internal party adjudication to take the funds, records, accounts, and organizational control of the West Virginia Young Democrats, removing the independent source of the youth-constituency ex officio seat.
7. In Alabama, the Democratic National Committee used national authority in a factional state-party dispute to review the voting body, use a hearing officer, order correction, and supervise compliance; in West Virginia, DNC actors participated in the chain and the RBC refused review.

8. The Rules and Bylaws Committee denied jurisdiction and, in the same dismissal letter, entered a factual blame finding; James Roosevelt, a signatory to the Memorandum of Understanding, co-signed that dismissal.

10.2 Requested Relief

1. Appoint an independent hearing officer under Regulation 3.4(J). The Rules and Bylaws Committee co-chairs executed the Memorandum of Understanding; Harold Ickes authored or created instruments built on it; Clara Pratte routed challengers through a state-process barrier; and James Roosevelt co-signed the dismissal of the challenge to the instrument he signed. The Democratic National Committee holds an institutional interest in the outcome and cannot adjudicate a challenge to its own conduct. [Ex. 1, Ex. 2, Ex. 3, Ex. 4, Ex. 5, Ex. 6, Ex. 8]
2. Direct any DNC officer, member, staffer, consultant, agent, or representative who participated in the challenged West Virginia implementation, mediation, appeal-routing, prior dismissal, or related state-party process to take no part in adjudicating this challenge or supervising any remedy, except as a witness or custodian of records. [Ex. 1, Ex. 2, Ex. 3, Ex. 4, Ex. 5, Ex. 6, Ex. 8]
3. Preserve and produce in native electronic format, with author and editing-time properties intact, the credentials challenges Selina Vickers filed with the Rules and Bylaws Committee and the Credentials Committee before July 26, 2020, with their transmittal emails and attachments; the November 22, 2020 grievance; the 2021 grievances; and the 2021 governance instruments, including the draft agenda, procedural rules, Code of Conduct, and draft Affirmative Action Plan. The author of record, creation date, and editing time are facts the native files carry and flattened copies destroy. [Ex. 1, Ex. 2, Ex. 3]
4. Direct the hearing officer to determine the authorship and origin of the founding instruments, and to draw findings of fact adverse to any party that withholds native files within Regulation 3.4(J)'s reach. [Ex. 2]
5. Direct the hearing officer to decide the source authority of the caucus-nominated at-large seats, the AAC co-chair seats, and the youth-constituency ex officio seat; the validity of the June 6 composition; the validity of the automatic state-chair credential; and the validity of any future credential or certification produced by the June 6 WVSDEC structure. [Ex. 1, Ex. 13, Ex. 18, Ex. 19]
6. Condition, suspend, or decline recognition of the automatic state-chair credential, and any future West Virginia Democratic National Committee credential or certifica-

tion produced by the June 6 WVSDEC structure, until the hearing officer completes that record. [Ex. 18]

7. Restore caucus selection of the MOU-created constituency seats, rerun the affected selections and officer elections, conform the bylaws and implementation instruments to the Memorandum of Understanding, and bar the party-controlled Young Democrats identity from supplying the youth-constituency ex officio seat absent a lawful youth-constituency process. [Ex. 1, Ex. 13, Ex. 16, Ex. 16-A, Ex. 17, Ex. 18, Ex. 19]
8. Establish the rule this record requires: when a challenge alleges Democratic National Committee conduct in a state's internal affairs, the Democratic National Committee must refer the challenge to an independent hearing officer and abstain from deciding it. Factional action by a Democratic National Committee officer or member defeats the neutrality presumption that ordinary deference requires. [Ex. 1, Ex. 3, Ex. 8]
9. For any denial, identify the rule applied, state the facts accepted or rejected, and state the distinction between the enforcement power the Rules and Bylaws Committee used in Alabama and the dismissal it issued in West Virginia. [Ex. 8, Ex. 10, Ex. 11, Ex. 12]

Respectfully submitted,

Seth Sturm, Challenger, *Pro Se*

377 Messers Run Rd

Metz, West Virginia 26585

(304) 504-7333

sethsturm@gmail.com

Member, Senatorial District 2

West Virginia State Democratic Executive Committee

Dated: _____

EXHIBIT SCHEDULE

Exhibit	Description
1	2020 West Virginia Memorandum of Understanding.
2	Ickes authorship and metadata packet, including procedural rules, agenda documents, Code of Conduct, grievance material, and meeting-issue documents.
2-A	August 20, 2021 Alabama-to-West-Virginia importation email.
2-B	September 2021 Code of Conduct transmission chain and Ickes metadata.
3	September 22, 2021 Planning Subcommittee recording and transcript.
3-A	September 23, 2021 contemporaneous email corroborating Ickes's "outvote" advice.
4	August 2023 Clara Pratte / Ken Martin mediation email chain.
5	October 30, 2023 Pratte withdrawal of mediation and State Executive Committee appeal email.
6	October 31 / December 6, 2023 Pratte two-thirds appeal-path email.
7	March 28, 2024 RBC challenge selected excerpts.
8	June 28, 2024 RBC dismissal letter.
9	September 12, 2022 Indigenous Caucus dissolution resolution.
10	Official Alabama RBC resolution.
11	Alabama IHO / fatal-defect public reporting.
12	Alabama DNC-member credential public reporting; cited as reporting, with the underlying credential record requested from the DNC.
13	February 22, 2024 WVDP Board of Appeals decision in Powell v. Hively.
13-A	February 16 / February 22, 2024 Board of Appeals hearing transcript excerpt.
14	March 1 / March 8, 2024 Frankenberry letters.
15	KCSO Case No. 2024-00017430 file.
16	January 23, 2025 WVYD PAC amendment.
16-A	February 5, 2026 Secretary of State email confirming amendment timing and jurisdiction limits.
17	December 18, 2025 / January 21, 2026 WVYD PAC amendment.
18	June 6, 2026 reorganization record.
19	June 4, 2026 AAC meeting record.
20	June 6, 2026 Notice of Non-Acquiescence and DNC/RBC Escalation.
21	June 2, 2021 AAC formation script with seat preallocation.
22	July 12, 2021 AAC notice welcoming newly elected Latin American, AAPI, and Native/Indigenous co-chairs into the AAC.
23	September 26, 2021 Vickers statement describing Ickes's role and stating that the votes were what mattered.
24	September 27, 2021 AAC censure resolution.
25	November 29, 2021 Board of Appeals finding that the AAC failed to follow approved nomination and election procedure.

Exhibit	Description
26	AAC/CDUC no-meeting-since-May-2023 record.
27	Jacob Hively v. Chair Mike Pushkin proxy-grievance hearing transcript excerpt.
28	September 30, 2023 WVSDEC meeting recording excerpt.
29	September 29, 2023 YDA charter determination.
30	January 5 and 6, 2024 WVYD dossier request and transmittal materials.
31	January 8, 2024 Powell grievance.

SCHEDULE OF CO-SIGNERS

Seth Sturm is the challenger of record. The persons listed below join as co-signers. Each is a registered, enrolled, or otherwise qualifying Democrat and a resident of West Virginia; subscribes to the Charter and Bylaws of the Democratic Party of the United States and of the West Virginia Democratic Party; has been personally injured by, or is a member of a class injured by, the conduct set out in this Challenge; and has designated Seth Sturm as agent of record under RBC Regulation 3.3.

1. Name: _____ County: _____
2. Name: _____ County: _____
3. Name: _____ County: _____
4. Name: _____ County: _____
5. Name: _____ County: _____
6. Name: _____ County: _____
7. Name: _____ County: _____
8. Name: _____ County: _____
9. Name: _____ County: _____
10. Name: _____ County: _____
11. Name: _____ County: _____
12. Name: _____ County: _____
13. Name: _____ County: _____
14. Name: _____ County: _____
15. Name: _____ County: _____

Additional co-signers may be added on continuation pages in the same form.

Each co-signer named above executed the Co-Signer Affidavit in this matter. The challenger holds the executed affidavits and will produce them to the Committee on request. The challenger's Verification and Custodian Attestation, notarized, is filed with this Challenge.

CERTIFICATE OF SERVICE

On _____, the foregoing Consolidated Challenge, together with its Exhibit Schedule, all exhibits, and the challenger's notarized Verification and Custodian Attestation, was served by electronic mail on the service recipients listed below. The recipients are requested to distribute the filing to the appropriate Democratic National Committee and West Virginia Democratic Party officers, committee co-chairs, counsel, and other named officials as needed.

DEMOCRATIC NATIONAL COMMITTEE DNC Party Affairs, partyaffairs@dnc.org

WEST VIRGINIA DEMOCRATIC PARTY Chair Mike Pushkin,
mike@wvdemocrats.com

Printed name: _____ Date: _____

Signature: _____